

Statutory Guidance: Academy Trust and Maintained School Collaboration Framework

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From: Department for Education (DfE)

Status: Statutory Guidance (there is a legal duty to have regard to it)

Implementation Date: 1 September 2026

1. Summary and Overview

1.1 Objective

This guidance sets out the Department for Education's (DfE) framework for fostering deeper structural collaboration between local authority-maintained schools and academy trusts. The objective is to build a more cohesive, resilient, and equitable school system by ensuring that all institutions, regardless of legal structure, can share resources, expertise, and governance oversight to improve pupil outcomes.

1.2 Document Scope

This document replaces the *Interim School Cooperation Guidelines (2023)* and introduces new requirements regarding shared procurement, cross-trust teaching pools, and joint local governing committees.

Statutory Note: Under Section 10 of the Education Act, governing bodies of maintained schools and academy trusts must have regard to this guidance when entering into formal partnership agreements.

2. Who is this Guidance For?

This guidance is mandatory for:

- **Academy Trusts:** Including Single-Academy Trusts (SATs) and Multi-Academy Trusts (MATs).
- **Maintained Schools:** Including community, voluntary controlled, voluntary aided, and foundation schools.
- **Local Authorities (LAs):** In their capacity as the maintaining body for local schools.
- **Governing Boards:** Trustees, local governors, and maintained school governing bodies.

3. Core Policy Requirements

3.1 Formal Collaboration Agreements (FCAs)

From September 2026, where a maintained school and an academy trust share a geographic catchment area and demonstrate persistent recruitment or financial challenges, the Regional Director may issue a **Collaboration Notice**. Upon receipt, institutions must draft a Formal Collaboration Agreement (FCA) within 90 days.

An FCA must explicitly outline:

- **Shared Leadership:** Mechanisms for joint executive headship or shared specialist teaching staff.
- **Curriculum Alignment:** Co-design of Key Stage 3 and 4 pathways to optimize local timetabling.
- **Resource Pooling:** Shared estate management, IT infrastructure, and back-office services.

3.2 Governance and Accountability

When operating under an FCA, the governance structures must adapt to ensure joint accountability while respecting the distinct legal frameworks of both sectors.

Element	Maintained School Provision	Academy Trust Provision
Legal Entity	Remains under Local Authority maintenance.	Remains accountable to the Trust Board.
Oversight	Local Authority Governing Body.	Local Academy Committee (LAC).
Joint Committee	Must appoint 2 representatives to the Joint Collaboration Panel.	Must appoint 2 representatives to the Joint Collaboration Panel.
Accounting Officer	Headteacher / LA Chief Finance Officer.	Trust Accounting Officer (CEO).

4. Financial Schemes and Resource Management

4.1 Pooling Support Staff Costs

Academy trusts and maintained schools are permitted to pool budgets specifically for non-educational support services (e.g., HR, payroll, facilities management).

- **Vat Implications:** Maintained schools must utilize Section 33 of the VAT Act 1994 claims via their Local Authority, while academies must claim via Section 33B.

Combined procurement contracts must explicitly separate billing descriptors to remain compliant.

- **The 5% Efficiency Target:** Collaborative arrangements are expected to demonstrate a minimum of **5% efficiency savings** on non-staffing costs within the first 24 months of the agreement.

4.2 Capital Expenditure and Estates

School estates remain the property of the respective Local Authority or Trustee body. However, joint use of facilities (such as science laboratories, sports hubs, or specialized SEND units) must be governed by a standard **DfE Licence to Occupy** agreement, ensuring no transfer of core asset liabilities.

5. Compliance and Intervention

5.1 Monitoring

The Education and Skills Funding Agency (ESFA) alongside Regional Directors will monitor the implementation of FCAs through regular annual financial returns and governance reviews.

5.2 Failure to Comply

Where a school or trust fails to engage constructively with a Collaboration Notice, the DfE reserves the right to exercise intervention powers, which may include:

1. **For Maintained Schools:** The appointment of additional governors or a direction to the Local Authority to transition the school to academy status under an approved MAT.
2. **For Academy Trusts:** The termination or variance of the Master Funding Agreement, or the withholding of discretionary capital funding allocations.

6. Further Information and Support

- **Templates:** Standard FCA templates and legal memoranda can be downloaded via the DfE standard Document Portal.
- **Enquiries:** Contact the Regional Director's office for your specific regional hub via regional.delivery@education.gov.uk.